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NEGOTIATED AGREEMENT

between the

ALLEN COUNTY BOARD OF DEVELOPMENTAL DISABILITIES

and

LOCAL 1770/CHAPTER C/COUNCIL 8

AMERICAN FEDERATION OF STATE, COUNTY

AND MUNICIPAL EMPLOYEES, AFL-CIO

February 1, 2022 - January 31, 2025

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PREAMBLE

This Agreement entered into by the Allen County Board of Developmental Disabilities, Allen County, Ohio, hereinafter referred to as "Board" or "Employer," and Local 1770, Chapter C, Council 8, American Federation of State, County and Municipal Employees, AFL-CIO, hereinafter referred to as the "Union," has as its purpose the mutual satisfactory relationship between the Employer and the Union; the establishment of an equitable and peaceful procedure for the resolution of differences which may arise; and the establishment of rates of pay, hours of work, and those other items mutually agreed upon.

ARTICLE 1 – UNION RECOGNITION

- A. The Board recognizes the Union as the sole and exclusive representative of the employees of the Board, as hereinafter defined, for the purpose of collective bargaining with respect to rates of pay, hours of employment, and other terms and conditions of employment. Except as hereinafter limited, the terms “employee” or “employees” as used herein shall apply to persons who are employed in the following classifications:

Custodial Workers
Educational Aide
Secretary Receptionist
Transition Carryover Employee – ArtAbility
Transition Carryover Employee – Community
Based Specialist

Transition Carryover Employee – Vehicle
Maintenance
Transition Carryover Employee –
School/Custodial

- B. Except as hereinafter limited, the terms “employee” or “employees” as used herein shall exclude all other employees of the Board, including, but not limited to:

Accounting Clerk
Administrative Assistant – Human Resources
Administrative Assistant – Quality & Support
Services
Administrative Assistant – School
Administrative Assistant – SSA/Business
Administrative Assistant – Superintendent
Behavior Support Specialist
Behavior Support Specialist & Consultant
Business Office Supervisor
Community Connections Specialist
Cook
Developmental Specialist II
Director of Business
Director of Education & Early Intervention
Director of Quality & Support Services
Early Childhood Supervisor
Early Intervention Service Coordinator
Educational & Transition Consultant

Medicaid Assessment Specialist
Medicaid Quality Specialist
Medicaid Services Supervisor
Project SEARCH Instructor
Records Clerk
School Nurse
SSA Director
Service and Support Associate
Service and Support Associate – Children
Service and Support Associate -- Supervisor
Speech/Language Therapist (EI)
Superintendent
Technology Coordinator
Waiver Plan Specialist

Part-time employees who work an annual
average of less than thirty (30) hours per
week.

Human Resource Director
Individual Support Services Coordinator
Instructor – Adaptive Physical Education
Intake/Support Services Coordinator – Children
Intake/Support Services Coordinator
Intervention Specialist
Investigative Agent
Maintenance Foreman

Any and all other management-level,
supervisory or confidential positions.

Casual substitutes, whether classified as
substitutes, temporary employees, or
intermittent employees are excluded
from the bargaining unit.

- C. If at any time during this Agreement, fair share, or any form thereof, becomes legal, either party can request negotiations with the other. The parties agree to meet within 30 days of such request to negotiate the subject of this Article.
- D. Any petition for election or decertification of Union representation shall be in accordance with O.R.C. § 4117.07.
- E. The Board and the Union agree that membership in the Union shall not be compulsory. The Union agrees that neither it nor any of its officers or members will intimidate or coerce employees with respect to becoming or remaining members of the Union. The Board agrees not to interfere with the rights of employees to become members of the Union, and there shall be no discrimination, interference, restraint, or coercion by the Board or its representatives against any legal employee activity or employees acting in an official capacity on behalf of the Union.
- F. If the Board changes the title of or reclassifies a bargaining unit job, or creates a new job classification which the Union believes should be in the bargaining unit, the Board upon request of the Union shall discuss with the Union whether or not the job shall be included in the bargaining unit. If the parties do not agree on inclusion or exclusion of the job, the Union may file a written demand for arbitration with the Superintendent within ten (10) days of the discussion between the parties. The demand shall be arbitrated under the terms of the last Level of the grievance procedure. The arbitrator shall determine the inclusion or exclusion of the job from the unit based upon the definitions of O.R.C. § 4117.01 and criteria of O.R.C. § 4117.06.

ARTICLE 2 – UNION SECURITY

- A. Bargaining rights agreed to in this Agreement shall be interpreted to mean that management, the Employer or any of its department division heads or supervisors, will make no change in wages, fringe benefits or other conditions covered by this Agreement which would affect the bargaining unit, without negotiations with the Union.
- B. The Employer agrees to deduct Union membership dues once each month from the pay of any employee eligible for membership in the bargaining unit upon receiving written authorization signed individually and voluntarily by the employee. The signed payroll deduction forms must be presented to the Employer by the employee or an officer of the Union.
 - 1. Upon receipt of the proper authorization, the Employer will deduct Union dues during the next authorized dues deduction period and each month thereafter until such authorization is revoked by a signed statement, signed and presented by the employee to the employer and Union.
 - 2. The Employer, and/or County Auditor, agrees to furnish the Controller of the Union a warrant in the aggregate amount of the deduction.
- C. It is agreed that neither the employees nor the Union shall have a claim against the Employer for errors in the processing of a deduction unless a claim of error is made to the Employer in writing within sixty (60) days after the date such an error is claimed to have occurred. If it is found an error was made, it will be corrected at the next pay period that Union dues will normally be made. Payroll deduction of dues shall be authorized for the exclusive bargaining

agent only, and no other organization attempting to represent the employees within the bargaining unit as herein determined.

- D. Any employee who has submitted a dues checkoff authorization card may withdraw or revoke the same at the time and in the manner specified on the dues checkoff authorization card signed by the employee or as amended by the Union if the amendment specifies a shorter revocation period than the 15-day period tied to the end of this Agreement. Copies of the employees' dues checkoff authorization cards are available from the Union on request.
- E. The Union agrees that it will indemnify and hold the employer harmless for any claims, demands, suits, actions, proceedings, and other forms of liability, brought by any employee arising from any deduction made by the employer for purposes of complying with any provision of this Article or in reliance on any notice or dues checkoff authorization card furnished under any provisions of this Article.

ARTICLE 3 – MANAGEMENT RIGHTS

Except as limited or modified by a specific or express term of this written Agreement, the Board retains and reserves for itself and the administration the right to:

- A. Determine matters of inherent managerial policy which include, but are not limited to areas of discretion or policy such as the functions and programs of the public employer, standards of services, its overall budget, utilization of technology, and organizational structure;
- B. Direct, supervise, evaluate, or hire employees;
- C. Maintain and improve the efficiency and effectiveness of governmental operations;
- D. Determine the overall methods, process, means, or personnel by which governmental operations are to be conducted;
- E. Suspend, discipline, demote, or terminate for just cause, or lay off, transfer, assign, schedule, promote, or retain employees;
- F. Determine the adequacy of the work force;
- G. Determine the overall mission of the Employer as a unit of government;
- H. Effectively manage the work force;
- I. Take actions to carry out the mission of the public employer as a governmental unit.

ARTICLE 4 – EMPLOYMENT INFORMATION

Each month, if there is a change, the Employer will provide to the Union Staff Representative a copy of the personnel action status sheet, showing name, job classification, department and indicating the date of action of bargaining unit employees who were hired, promoted permanently or temporarily transferred, suspended, terminated, resigned, left on or returned from leave of absence, etc., and a copy

of the Board minutes for the prior month. The information will be sent by email or U.S. Mail to AFSCME Council 8.

ARTICLE 5 – PLEDGE AGAINST DISCRIMINATION

- A. The provisions of this Agreement shall be applied equally to all employees in the bargaining unit without discrimination as to age, sex, marital status, race, color, creed, disability, national origin, job classification, political opinions or affiliation.
- B. All references to employees in this Agreement designate both sexes, and wherever the male gender is used it shall be construed to include male and female employees.

ARTICLE 6 – HOURS OF WORK

A. Standard Work Week

- 1. The hours of work for members of the bargaining unit shall be according to their regularly scheduled “Standard Work Week” as indicated on their position description. If the Board determines that the “Standard Work Week” needs to be modified for effective program management, the Board may modify it after first discussing the modification with the Union.
 - 2. Employees who work a majority of their hours between 2:00 p.m. and 5:00 a.m. shall receive an additional four percent (4%) pay only for hours worked during this time period.
- B. The Employer shall provide a vending machine within Board-owned facilities, accessible to employees. The Employer shall also provide an employee break room in each building which will be available at all break times. Smoking will not be permitted on campus at any time.
- C. If the Employer changes the “Standard Work Week,” the following procedures shall be used:
- 1. Employer shall give those of greatest seniority first opportunity to either accept or reject the new assignment.
 - 2. If there are insufficient numbers of employees accepting the new assignment, the Employer shall assign the least senior employee(s).
 - 3. Unless otherwise agreed by Employer and affected employee(s), the Employer shall give at least five (5) work days’ notice prior to the new assignment becoming effective.
 - 4. Any new assignment either voluntary or assigned as above shall in no way reduce the employee’s regularly scheduled work week as of the signing of this Agreement, unless it is part of a Board-approved program reduction plan.
- D. Any twelve (12) month bargaining unit employee whose “Standard Work Week” is less than forty (40) hours, shall receive a prorated portion of vacation, holiday pay, workers’ compensation, sick leave, and P.E.R.S.

E. Lunch and Breaks

1. Lunches and break times shall be scheduled at reasonable times according to the following schedule:

<u># of Hrs. Worked</u>	<u>Amount of Break/Lunch Time</u>
0 - 4.0	Zero (0) minutes break/lunch
> 4 - < 6.5	Fifteen (15) minutes as scheduled by supervisor
> 6.5 - 8.0	Either two fifteen-minute breaks or one thirty-minute break

ARTICLE 7 – OVERTIME

A. Rate of Pay

All work performed in excess of the “Standard Work Week” shall constitute overtime work and shall be paid at the rate of one and one-half (1-1/2) times the employee’s regular rate of pay, but only to the extent the employee’s work hours for the week exceed forty (40). No compensatory time off is authorized. Under no circumstances shall overtime be paid until the employee has worked at least his/her “Standard Work Week.” Holidays, calamity, sick leave, personal leave, and vacation leave are not hours worked for purposes of calculating the forty (40) hours. No overtime, as described herein, shall be paid unless it has been authorized by the Employer.

- B. There shall be no pyramiding of overtime pay and other premium pay.

C. Distribution

1. Routine overtime work shall be distributed equally to employees insofar as practical. When overtime is first offered, the most senior shall be offered the overtime. On each occasion, the opportunity to work overtime shall be offered to the employee who has the least number of overtime hours worked or refused to his/her credit at that time. This distribution of overtime shall start anew each January 1. When a new hire is added after January 1 of a year, the new hire will be charged with the average number of overtime hours per employee to date within the classification at the time of hire.
2. One time each year, each Department will provide an opportunity for employees to sign up for any known committee/activity for the coming year. All employees within the effected Department will be notified of the opportunity to serve as a member of committees/activities and will be notified of the potential to earn overtime. If more people request to serve on a committee/activity than are needed, employees shall be selected based on Article 7, section D(1), except that management may select individuals based on a particular skill that is required for that committee/activity. Once a person is on a committee/activity, they shall remain on the committee/activity until the event or activity is completed, provided their performance is acceptable and subject to reasonable limits established by management, regardless of the amount of overtime they accrue. New committees or activities which develop during the year will be awarded based on Article 7, section D(1) above if overtime is going to be offered.

3. Personnel occupying positions outside of the bargaining unit shall not be utilized to perform work normally performed by bargaining unit employees, unless the Superintendent/designee declares an emergency situation. Overtime work shall be voluntary, except for emergencies, and then the overtime will be required of the least senior employee with less than ten (10) years' seniority. There shall be no discrimination or coercion against any employee who declines to work voluntary overtime.

ARTICLE 8 – CALAMITY DAYS

- A. Employees are to report to work as scheduled when there is a delay due to inclement weather. If the entire Agency is closed due to inclement weather or for other reasons such as health or mechanical problems ("Calamity Day"), employees will be paid at their regular hour rate for his/her scheduled work time, up to eight (8) hours per day ("Calamity Pay").
- B. If the employer requires an employee to work on a Calamity Day, the employee will receive the Calamity Pay described in section A, above, in addition to pay for the hours actually worked.
- C. Employees scheduled to take leave on a Calamity Day shall not receive Calamity Pay and shall be charged for the leave as originally scheduled.

ARTICLE 9 – HOLIDAYS

- A. All twelve (12) month employees of the bargaining unit shall be entitled to the following holidays:
 1. First day of January, New Year's Day
 2. Third Monday of January, Martin Luther King Day
 3. Third Monday of February, President's Day
 4. Last Monday of May, Memorial Day
 5. Nineteenth Day of June, Juneteenth
 6. Fourth Day of July, Independence Day
 7. First Monday of September, Labor Day
 8. The day after Thanksgiving
 9. The day before Christmas
 10. The Fourth Thursday of November, Thanksgiving Day
 11. The Twenty-Fifth Day of December, Christmas Day
- B. If a holiday falls on a day the employee is not scheduled to work, i.e., Saturday or Sunday, the day immediately preceding or succeeding the holiday shall be observed as the holiday. Any bargaining unit employee required to work on a holiday shall receive his/her regular rate of pay, plus time and one-half (1-1/2) for all hours worked.
- C. To be eligible for holiday pay, the employee must work his/her full shift on his/her scheduled work days immediately before and after the holiday, unless: (a) the employee is on approved

vacation, personal leave, or comp time; (b) the employee is on jury duty; (c) the employee is sick and verified by a Doctor's statement; or (d) the Superintendent approves the exception.

ARTICLE 10 – PERSONAL LEAVE POLICY

- A. Each employee shall be entitled to three (3) paid personal leave days during the course of any year, without reason, subject to the condition that said employee must give notice to the administration at least twenty-four (24) hours prior to the use thereof except in emergency situations where twenty-four (24) hours' notice cannot practically be given.
- B. Personal leave may be denied or withdrawn when the immediate supervisor deems it necessary for operational reasons; provided, however, that approval of personal leave shall not be denied or withdrawn unreasonably, arbitrarily, or capriciously. Personal leave days are not cumulative from one year to the next (July 1 to June 30).
- C. Newly hired employees prior to January 1, get three (3) days during that program year. Those hired after January 1 will receive one (1) day that program year (July 1- June 30).

ARTICLE 11 – VACATION

- A. Each twelve (12) month employee of the bargaining unit, after completion of one (1) year of seniority, is entitled during each year thereafter to two (2) calendar weeks, excluding legal holidays, of vacation leave with full pay. Employees having eight (8) or more years of seniority are entitled, during each year thereafter, to three (3) calendar weeks of vacation with full pay. Employees having fifteen (15) or more years of seniority are entitled, during each year thereafter, to four (4) calendar weeks of vacation leave with full pay. Employees with twenty-five (25) or more years of seniority are entitled, during each year thereafter; to five (5) calendar weeks of vacation leave with full pay. Such vacation shall accrue to the employee upon each successive annual recurrence of the anniversary date of his/her employment.
- B. Any twelve (12) month bargaining unit employee whose "Standard Work Week" is less than forty (40) hours shall receive a pro-rated portion of vacation pay.
- C. Days specified as holidays shall not be charged to an employee's vacation leave.
- D. Vacation leave should be taken by the employee during the year in which it accrued and prior to the next recurrence of the anniversary date of his/her employment. No vacation leave shall be carried over for more than three (3) years.
- E. Vacation credit shall be based only on continuous service as a regular employee of the Board.
- F. No employee shall be paid for accrued or prorated vacation leave if: (1) the employee was terminated for cause; or (2) in the case of resignation, the employee failed to give at least fourteen (14) calendar days' written notice.
- G. An employee is entitled to compensation, at his/her current rate of pay, for the prorated portion of any earned but unused vacation leave for the current year to his/her credit at time of

separation, and in addition shall be compensated for any unused vacation leave accrued to his/her credit.

- H. Vacation requests must be submitted between November 1 and November 30 each year and will be approved or disapproved by the employer by the first work day on or after December 1 of each year. During the November 1 to November 30 window, employees shall request all vacation leave for the upcoming one-year period starting the first work day on or after January 7. The employer will approve requests for vacation in order of employee seniority. If an employee's request for vacation time is denied, and another employee with approved time in the same classification later opts to work instead of taking approved vacation time, the employer shall offer the available vacation time first to an employee whose request for vacation time was initially denied. If multiple employees' requests for vacation time were initially denied, this offer shall be made in order of seniority.
- I. Any vacation time requested after November 30 will be approved on a first come, first served basis.
- J. An employee may use any or all vacation leave to his/her credit as long as the vacation absence is in fifteen (15) minute increments or greater. The employer must be notified at least twenty-four (24) hours prior to the employee taking the one-hour unit, unless approved with less than 24-hour notice in the supervisor's sole discretion.

ARTICLE 12 – GRIEVANCE PROCEDURE

A. Basic Objective

The objective of this procedure is to secure at the lowest possible administrative level, in the shortest time, equitable solutions to grievances. Proceedings shall be kept as informal and confidential as may be appropriate at any level of the procedure. All grievances shall be presented promptly after the event giving rise to the grievance.

B. Definitions

- 1. A "grievance" is a claim by a member(s) of the bargaining unit that there has been a violation, misinterpretation or misapplication of any provision of this Agreement.
- 2. An "aggrieved person" is the person or persons making the claim. The term "days" when used in this Article shall mean working days unless otherwise indicated. Thus, weekend and vacation days are excluded. Illness or other physical incapacity will extend the grievance procedure when agreed in writing pursuant to C., below. Every effort shall be made to adhere to the time limits as specified, but if either party cannot, they should seek an extension in writing.
- 3. The term "immediate supervisor" shall be defined as the lowest level proper administrative authority who has the authority to make a decision resolving the grievance. The Union may file a written grievance at Level Four within five (5) days after the occurrence of the alleged grievance if the Union believes that no one below the Superintendent or designee has authority to provide a remedy. If the Superintendent or

designee believes the grievance could be resolved at a lower level, he/she shall delegate the grievance to the appropriate level in lieu of responding to the grievance, without prejudice to the Union.

C. Procedure

Since it is important that grievances be processed as rapidly as possible, the number of days indicated at each level shall be considered a maximum, and every effort should be made to expedite the process. Failure to initiate the informal procedure or to appeal from one (1) step to another in a timely manner constitutes a waiver of the grievance. The time limits specified may, however, be extended by mutual agreement in writing. Timelines will be extended to accommodate the vacation of the aggrieved person or appropriate administrator at a particular level of the procedure. The aggrieved person must notify the appropriate administrative parties at the arrived level of his/her vacation dates, so that the grievance may be resumed after his/her vacation has terminated.

D. Right to Union Representation

The aggrieved person shall have the right to be accompanied by and receive assistance by a representative of the Union and its affiliates or counsel of the aggrieved person at any stage of the grievance procedure.

E. Union Release Time

1. Providing the operational needs permit and upon prior approval of the appropriate supervisor, the building representative shall be granted release time without loss of pay to attend Level One grievance hearings. The President or Grievance Chairperson shall be granted release time without loss of pay to attend Levels Two, Three, and Four grievance hearings. All such hearings shall be held during the employee's normal work day.
2. The President or the Grievance Chairperson shall be granted release time with pay to investigate and file grievances during the normal work day, provided prior approval has been granted by the appropriate supervisor. Approval will not be unreasonably denied.
3. The aggrieved person or at least one (1) member of the affected group must be present at formal levels of this procedure.

F. Level One - Informal Procedure

An aggrieved person shall first discuss the grievance with his/her immediate supervisor, with the objective of resolving the matter informally. The aggrieved person must specify to his/her immediate supervisor the language of this Agreement claimed to be involved. Informal procedures must be initiated within five (5) days after the occurrence of the alleged grievance or within five (5) days after the aggrieved person reasonably should have known of the occurrence of the alleged grievance. The same deadline will apply to grievances filed at Level Four initially.

G. Level Two - Formal Procedure

If the aggrieved person(s) is not satisfied with the outcome of the informal procedure, no later than five (5) days after the informal discussion at Level One giving rise to the grievance, the Union must submit to the aggrieved person's immediate supervisor a completed and signed grievance identifying the specific contract language allegedly violated, upon such forms as are designated and provided by the parties. In all levels of the formal proceedings, official Grievance Report Forms shall be made in triplicate: One (1) for the aggrieved person; one (1) for the administration; and one (1) for the Union. Within five (5) days of the filing with the immediate supervisor, a hearing shall be arranged between the aggrieved person, the Union and the immediate supervisor. A decision shall be rendered in writing within five (5) days after the hearing. After the grievance is filed at Level Two, the contract language allegedly violated or the remedy sought may not be modified.

H. Level Three

In the event the Union is not satisfied with the disposition at Level Two, or no decision has been rendered within five (5) days after the Level Two hearing, the Union may inaugurate Level Three proceedings within five (5) days of the Level Two decision, by filing an appeal with the next higher supervisory authority.

I. Level Four

In the event the Union is not satisfied with the disposition at Level Three, or no decision has been rendered within five (5) days after the Level Three hearing, the Union may inaugurate Level Four within five (5) days of the Level Three decision by filing an appeal with the Superintendent or designee.

J. Level Five

In the event the Union is not satisfied with the disposition at Level Four, or no decision has been rendered within five (5) days after the Union's filing of an appeal to Level Four, the Union within five (5) days of the disposition or failure to render a disposition at Level Four may file with the Superintendent a written request for Grievance Mediation. The parties shall hold the mediation meeting as soon as the FMCS mediator can be scheduled.

K. Level Six

Should any grievance remain unsettled after exhausting the aforesaid procedure, the Union may demand arbitration within ten (10) days after failing to settle the Grievance as outlined in Level Five. Within ten (10) days after arbitration is invoked, the Union and the Board shall jointly petition the American Arbitration Association, or other mutually agreeable organization, and request a list of qualified arbitrators. The parties shall select a single arbitrator within ten (10) days after receiving the list to serve as the arbitrator, by alternately striking one (1) name from the list until only a single name remains. Either party shall have the right to reject a list and request another.

1. The award of the arbitrator shall be reduced to writing. The arbitrator shall not be empowered to rule contrary to, to amend, to add to, to modify, to change, or to eliminate any of the provisions of this Agreement in arriving at its award. The arbitrator shall expressly confine itself to the precise issue submitted for arbitration and shall have no authority to make an award on any other issue not submitted to the Board.
2. The decision of the arbitrator shall be final and binding and shall, as circumstances permit, be implemented within fifteen (15) calendar days after the award has been delivered.
3. The cost for the services of the arbitrator shall be divided between the parties, the loser pays no more than two-thirds (2/3) the cost and the winner pays no less than one-third (1/3) of the cost. If the arbitration decision is of mutual importance to both parties, the arbitrator shall divide the cost as part of the award.

L. Miscellaneous

1. The Union will be the exclusive representative of an aggrieved person at Levels Two through Five. The aggrieved person may proceed with Level One individually or with Union representation, at his/her option.
2. The procedures contained in this Article 13 constitute the sole and exclusive method of redressing grievances, including disputes over employee suspensions, demotions and terminations, arising during the life of this Agreement and any extensions thereof. Neither the Union nor an aggrieved person may file or continue to maintain a grievance if the dispute is also the subject of a charge or complaint filed with an administrative agency, including the EEOC, OCRC, and SERB. It is further understood and agreed that a decision at any level of the grievance procedure that is mutually acceptable to the Union and the Board's representative shall be final and binding upon the aggrieved person, the Union, and the Board.
3. The temporary absence of the aggrieved person, or the appropriate supervisor or management-level employee shall toll the running of the days during the absence of such person, but in no case for more than five (5) additional days.
4. A grievance may be withdrawn at any level without prejudice and without record, but will be considered resolved.
5. Copies of all written decisions of grievances shall be sent to all parties involved: the Union President, the aggrieved person, and the appropriate administrator.
6. Forms for processing grievances shall be made available through all administrative offices in each building, and designated officials of the Union.
7. All documents, communications, and records dealing with the processing of a grievance, if retained, will be filed separately from the personnel files of the participants and shall be treated as confidential material.

8. No reprisals shall be taken against any party because of their involvement in the use of this Grievance Procedure.

ARTICLE 13 – UNION REPRESENTATION

- A. International Union or Council representatives will be recognized by the Employer as Union representatives and shall be permitted access to the Employer's premises.
- B. Stewards
 1. The Union must submit in writing the names of stewards to the Employer or his/her designated representative. Changes in stewards will be treated in the same manner. No steward shall be permitted to function as such until the Employer has been presented with written notice of the steward by the Local Union.
 2. The Union shall provide to the Employer or his/her designated representative an official roster of its officers and representatives which is to be kept current at all times and to include the following:

a.	Name	d.	Division
b.	Address	e.	Immediate supervisor
c.	Home telephone number	f.	Union office held
- C. The Employer shall recognize one (1) steward.
- D. Union stewards shall confine their activities to the area they were elected to serve and shall operate in accordance with this Article and all of its Sections and Subsections.
- E. The Employer agrees that up to one (1) hour per election shall be authorized for the purpose of conducting Union steward elections on the Employer's premises. These steward elections are to be held during uncompensated periods, i.e., before the start of the shift, during lunch breaks, or following the completion of the shift.
- F. The Chapter Chairperson and Vice Chairperson shall operate in accordance with the provisions of this Article and all of its Sections and Subsections, except that the Chapter Chairperson and Vice Chairperson may function as a Union representative and may conduct Union activities in all areas of the bargaining unit.
- G. Union Business
 1. The Employer agrees that during working hours, on the Employer's premises, and without loss of pay, Union stewards and representatives shall be allowed to:
 - a. Attend negotiating meetings with management.
 - b. Transmit communications, authorized by the Local Union or its officers, to the Employer or his/her representatives.

c. Consult with the Employer or his/her representatives concerning the enforcement of any provision of this Agreement.

d. The Employer agrees that the Union representatives may post notices on bulletin boards, distribute Union literature and solicit Union membership in work areas before the start of and at the completion of the day's work, and during lunch or break time.

e. Investigate and process grievances.

2. Rules governing activity by Union representatives during their scheduled work hours are as follows:

a. Each Union representative must obtain, in advance, authorization of his/her immediate supervisor before beginning Union activities.

b. Each Union representative shall identify the reason for the request at the time Union activity is requested.

c. No Union representative shall conduct Union activities in any work area without notifying the supervisor in charge of that area of the nature of the Union activity.

d. Every Union representative shall cease their Union activities immediately upon the reasonable order of the supervisor of the area in which the Union activity is being conducted or upon the reasonable order of that Union representative's immediate supervisor.

e. No Union representative shall be permitted time off the job for unauthorized Union activities.

f. Use of the above privileges shall be limited to reasonable frequency and duration.

H. The Employer shall provide a bulletin board, approximately three (3) feet by four (4) feet, for the Union in the custodial work room. The Union shall post meeting notices, bulletins, legislative reports, committee reports and other pertinent information relevant to authorized Union activities on such boards.

I. In the interest of sound labor-management relations, unless mutually agreed otherwise, the Employer or his/her designee and other members of management shall meet with designated representatives of the Union to discuss pending problems and to promote a more harmonious relationship between the Union and the Employer if requested by the Union or the Employer.

ARTICLE 14 – DISCIPLINARY PROCEDURES

A. Discipline normally shall be progressive in nature and include verbal warning, written reprimand, short suspension (three (3) days or less, which may be working (paid) or non-

working (unpaid)), and long suspension (four (4) days or more, which may be working (paid) or non-working (unpaid)), before termination from employment.

B. Just Cause

1. Non-probationary employees may be terminated for just cause.
 2. Progressive discipline shall take into account the nature of the violation, the employee's records of discipline, the employee's record of performance and conduct as outlined in Section A of this Article.
- C. Incompetency, inefficiency, unsatisfactory performance, dishonesty, drunkenness, immoral conduct, insubordination, discourteous treatment of the public, neglect of duty, absence without leave for three (3) or more successive days, violation of any policy or work rule, any other failure of good behavior or any other acts of misfeasance, malfeasance, or nonfeasance in office, or conviction of a felony while employed with the Board shall be cause for disciplinary action.
- D. "Disciplinary meeting" is any meeting which affects any employee where a written or possible sanction may be taken. Verbal warning may not be conducted or given by the Employer without the employee being notified of their right to Union representation. A record of verbal warning shall be kept by the Employer, signed by the employee, and retained in the employee's personnel file.
- E. If the supervisor or other representative of the Employer has reason to reprimand an employee, it shall be done in a manner that will not embarrass the employee before any other employees or the public.
- F. When a verbal warning has not produced the desired improvement in the employee's conduct, the supervisor may issue a written reprimand. However, no discipline of record shall be given to any employee until the employee has received a written notice of a disciplinary meeting with the alleged charges contained therein and been given the opportunity for a hearing by the Employer with, if the employee so desires, a steward and/or other Union officials present. Any disciplinary action forthcoming without following this procedure shall be voided and withdrawn from the employee's records.
- G. Disciplinary action may be appealed through the grievance procedure. The employee must initiate Level One (Informal Procedure) of the Grievance Procedure within five (5) working days after his or her receipt of written notice of the discipline being imposed.
- H. The Employer shall notify the Employee and the Union (with the Employee's consent), upon becoming aware of the alleged offense, of impending discipline. If the Employer has not completed its investigation within twenty (20) days, the Union and Employee shall be notified of the reason to extend the timeline.

ARTICLE 15 – EMPLOYEE PERSONNEL FILES

- A. Each employee, with his/her Union steward, if he/she so desires, may inspect his/her personnel file maintained by the Employer or anyone representing the Employer. An employee shall receive a copy of a "job-related offense" before it is placed in his/her personnel file. If any employee disputes the accuracy or completeness of personnel information pertaining to him/her, he/she shall be permitted to include in his/her file, a statement of his/her position on the disputed information or a notation that he/she protests the accuracy or completeness of the information.
- B. Materials placed in the employee's file must be identified and dated in such a manner that the author and the person placing the material in the file are known. Any material in the employee's personnel record which has not been signed by him/her, and a copy given to him/her, will not be used against him/her. The signing of any materials to be placed into an employee's personnel record, will not indicate an agreement by the employee as to the contents of the material, but does acknowledge he/she has seen it.
- C. Refusal to sign a document to acknowledge that the employee has seen it shall be reason to subject the employee to discipline, including suspension.
- D. All forms of discipline shall remain in the file for thirty-six (36) months. However, verbal and written reprimands shall cease to have force and effect at 12 months after the effective date of the reprimand, except in cases of repetitive or same/similar conduct or in cases of safety or health involving students, clients, or fellow employees. Nothing in this paragraph (D) limits or prevents the Board from maintaining any records required by law.

ARTICLE 16 – TERMINATION OF EMPLOYEES

A. Probation

Each newly hired regular employee shall serve a probationary period of one year. A probationary employee may be suspended or terminated by the Superintendent at any time during the probationary period. The Superintendent shall send a copy of the order suspending or terminating the employee to the Union President. Neither a probationary employee nor the Union may file a grievance or appeal to the State Personnel Board of Review concerning his or her suspension or termination during the probationary period.

B. Probation Upon Change of Position

An employee who is awarded a change of position shall have a probationary period of one hundred twenty (120) actual work days in such position. During the last sixty (60) work days of such period the Superintendent or designee, may return the employee to his or her prior position at his or her prior rate of pay for a performance reason(s) which is not arbitrary or capricious, and any reassignments or appointments made because of such promotion shall be reversed (and any new hire treated as a probationary termination). The Superintendent or designee, shall give the employee and Union President written notice of his/her intention to demote the employee from the promotional position during probation, and give the employee (with Union representation) an opportunity to challenge or otherwise explain his or her position. The Union may file a grievance concerning such demotion.

C. Suspension/Termination of Non-Probationary Employees

A non-probationary employee may be suspended or terminated by the Superintendent or designee for the causes set forth in O.R.C. §124.34. Before suspending or terminating the employee, the Superintendent shall provide the employee and Union President with a copy of a written notice of intended action, which shall include the reasons for the intended action. The Superintendent or designee shall provide the employee an opportunity (with Union representation) to challenge the intended action or otherwise to explain his/her conduct. If the Superintendent or designee then determines to suspend or terminate the employee, he/she shall provide the employee and Union President with a copy of the order of suspension or termination. The Union may file a grievance concerning the suspension or termination at the Superintendent's or designee's level within five (5) work days of the Union President's receipt of the order. Neither the employee nor Union may appeal the suspension or termination to the State Personnel Board of Review.

ARTICLE 17 – SICK LEAVE

A. Accumulation

1. Employees covered by this Agreement shall earn and accumulate paid sick leave at the rate of 4.6 hours of paid sick leave for each eighty (80) hours of service in active pay status, including paid holidays, vacations, overtime and sick leave.
2. Unused sick leave shall be cumulative without limit.
3. The previously accumulated sick leave of an employee who has been separated from public service to a County Board of DD shall be placed to his/her credit upon his/her reemployment in the public service provided that such reemployment takes place within ten (10) years of the date on which the employee was last terminated from public service.

B. Use of Sick Leave

1. Employees may use sick leave for absence due to personal illness, pregnancy, injury, exposure to contagious disease which could be communicated to other employees, and for injury or illness of an employee's minor child, or for serious illness or injury, or death in the employee's immediate family.
2. Definition of "immediate family" means employee's spouse, grandparents, mother, father, child, grandchild, brother, sister, mother-in-law and father-in-law, brother-in-law, sister-in-law, son-in-law, daughter-in-law, step-parent, step-child, a legal guardian or other person who stands in the place of parent (loco parentis) and in addition such other person who because of close relationship to such employee, shall be determined by the Superintendent or designee to be the equivalent to members of the employee's immediate family.
3. When sick leave is used, it shall be deducted from the employee's credit on the basis of one (1) hour for every one (1) hour of absence from previously scheduled work. An

employee shall be permitted to take a portion of a sick day for medical, dental or optical examination which cannot be scheduled during non-working hours. Sick leave used shall be charged in minimum units of one-quarter (1/4) hour. If professional medical attention is required by the employee or member of the employee's immediate family, a certificate, from a physician stating the nature of the condition may be required to justify the use of sick leave. Employees must notify their immediate supervisor at least one (1) hour prior to the start of their scheduled shift starting time to use sick leave.

C. Abuse

An employee who fails to comply with this Article shall not be allowed to use sick leave for time absent from work under such noncompliance. Falsification of either the signed statement or a physician's certificate or an application for use of sick leave shall be grounds for disciplinary action which may include termination. Any abuse or patterned use of sick leave shall be just and sufficient cause for disciplinary action. In the event of suspected sick leave abuse as determined by the Superintendent, the Superintendent may require evidence as to the adequacy of the reason(s) for an employee's absence during the time for which sick leave is requested. Sick leave abuse may be indicated by any or all of the following:

1. Excessive use of sick leave within a twelve (12) month period which has not been substantiated by a physician's or other licensed health care provider's statement.
2. Use of sick leave soon after it has accrued.
3. Repeated use of sick leave on the same day of the week.
4. Repeated use of sick leave on the day(s) before and/or after regularly scheduled days off or holidays.
5. Falsification or misrepresentation of the reason(s) for an employee's absence.
6. Low sick leave balances in relation to an employee's length of service.
7. Being in unpaid status.

D. Cash Payment for Sick Leave Credit

At the time of their retirement, employees may receive a severance payment of up to 50 days' sick leave. The amount of this payment will be calculated by multiplying the employee's accumulated sick leave (up to 200 days) by .25 (25%).

E. Sick Leave Incentive

If an employee has not used any sick leave for the quarter, the employee shall earn one day's pay at the rate in effect the last day of that quarter. Quarters shall run September through November, December through February, March through May, and June through August. Nine-month employees shall not be eligible for this incentive during the summer quarter. Payment will be made during the month following the end of the quarter. The use of sick leave for

FMLA, donated sick leave or death in the employee's immediate family shall not affect the employee's eligibility for a sick leave incentive.

ARTICLE 18 – JURY OR WITNESS DUTY

- A. Employees shall be granted court leave with full pay only for the time required at court and reasonable travel time when they are summoned for jury duty by a court of competent jurisdiction, or subpoenaed to appear before any court, commission, board or other legally constituted body authorized by law to compel the attendance of witnesses, where the employee or Union is not a party to the action.
- B. Any compensation or reimbursement for jury duty or for court attendance compelled by subpoena, when such duty is performed during an employee's normal working hours, shall be remitted by the employee to the Board.
- C. Any employee who is appearing before a court or other legally constituted body in a matter in which he/she is a party may be granted vacation time, personal leave, comp leave, or leave of absence without pay. Such instances would include, but not be limited to, criminal or civil cases, traffic court, divorce proceedings, custody, appearing as directed as parent or guardian of juveniles, or a person adjudicated incompetent.

ARTICLE 19 – LEAVES FOR UNION OFFICIAL OR UNION DELEGATES

- A. The Employer shall grant a total of two (2) days of paid leave of absence for each calendar year for the bargaining unit. These absences shall be used to attend training sessions, safety seminars, legislative conferences, and state and national conventions sponsored by the Union.
- B. The Local Union agrees to give ten (10) days' advance notice in writing when possible, and to provide payment for other cost incurred by the employee's attendance at these training sessions.
- C. Leaves of absence for Union officials or delegates shall not be accumulative from year to year.
- D. The Union agrees to cooperate with the Employer to minimize the impact on the work force.

ARTICLE 20 – LEAVE WITHOUT PAY

A. Length of Leave

- 1. The Superintendent or designee may grant a leave of absence to any employee for a maximum duration of six (6) months for any personal reasons of the employee. Such leave may not be renewed or extended beyond six (6) months.
- 2. Leaves may be granted for a maximum period of two (2) years for purposes of education, training, or specialized experience which would be of benefit to service by improved performance at any level; or for voluntary service in any governmentally sponsored program of public betterment.

B. Authorization for Leave

1. The authorization of a leave of absence without pay may be granted by the Superintendent or designee.
 2. A leave of absence will be requested and authorized on a form designated by the appointing authority. The granting of any leave of absence is subject to approval by the Superintendent or designee.
 3. A leave of absence without pay may be granted for other valid reasons, by mutual consent between the Employer and the Union.
- C. Upon completion of a leave of absence, the employee is to be returned to the position formerly occupied, or to a similar position if the employee's former position no longer exists. Any replacement in the position while an employee is on leave shall be a temporary assignment and will be terminated upon the reinstatement of the employee from leave. The terminated employee will be considered for other vacancies.
- D. Upon two (2) weeks' written notice to the Superintendent or designee, an employee on a non-medical or non-disability leave may return to work before the scheduled expiration of his/her leave.
- E. The Employer agrees that the Union may file grievances as provided for in this Agreement with respect to the reasonable application of the Sections of this Article.

F. Unpaid Disability Leave

This Section (F) sets forth the procedure for unpaid disability leaves of absence, including those requested by employee(s) and those imposed by the Superintendent or designee. This Section (F) supersedes and replaces all provisions of the Ohio Revised Code and the Ohio Administrative Code on this subject.

1. The Superintendent or designee may grant an employee an unpaid disability leave due to a disabling illness, injury or condition for up to six (6) months upon the presentation of evidence as to the probable date for return to active work status. The employee must demonstrate that the probable length of disability will not exceed six (6) months. If the employee is unable to return to active work status within the six (6) month period of his/her leave due to the same disabling illness, injury or condition, the employee will be given a disability separation. The employee shall have reinstatement rights after such a disability separation for the lesser of the employee's uninterrupted paid service with the Board or three (3) years from the date that the employee was no longer in paid status.
2. A medical examination or satisfactory written documentation substantiating the cause, nature, and extent of the disabling illness, injury, or condition shall be required prior to the granting of a disability leave or disability separation unless the employee is hospitalized at the time the leave of absence is to begin or the disability separation is

given. If an examination is requested by the Superintendent or designee, the Board will bear the cost of the examination.

3. An employee may return to work from an unpaid disability leave of absence at the end of the leave, or earlier upon two (2) weeks' written notice to the Superintendent or designee and, in either case: (1) a written certificate from the employee's physician satisfactory to the Superintendent or designee as to the employee's ability to return to his/her usual duties; or (2) the examination report of a physician designated by the Superintendent or designee and paid for by the Board that the employee is capable of performing the substantial and material duties of his/her position or to perform duties of a position for which the employee is reasonably suited to perform based on the employee's education, training, or experience. The Superintendent or designee will give the examining physician facts relating to the perceived disabling illness, injury, or condition. Additional information may include the requirements of the employee's position; duty statement; job classification specifications; and position descriptions. The Board will use its best efforts to have the examination report within two (2) weeks of the employee's request. If the examination report disagrees with the employee's doctor's opinion as to the employee's ability to return to work, the parties shall obtain the opinion of a third doctor, which shall control. The third doctor will be selected by the mutual agreement of the two (2) doctors or the parties.
4. Reinstatement rights from a disability separation shall be governed as follows:
 - a. An employee may make a written request to the Superintendent for reinstatement from a disability separation. The employee's request shall be accompanied by substantial, credible medical evidence that the employee is once again capable of performing the essential portions of the employee's job duties, and shall be made not more than once every three months and no later than the length of the employee's reinstatement rights as defined in F (1).
 - b. When a disability separated employee presents to the Superintendent substantial, credible medical evidence which states that the employee is once again capable of performing the essential job duties of the employee's assigned position, the Superintendent shall either reinstate the employee or require the employee to submit to a medical or psychological examination.
 - c. The Superintendent shall reinstate the employee after receiving the results of that examination if the Superintendent determines that the employee is once again capable of performing the essential job duties of the employee's assigned position.
 - d. The Superintendent shall institute pre-reinstatement proceedings if the Superintendent has received the results of the examination and initially determines that the employee remains incapable of performing the essential job duties of the employee's assigned position. Under those proceedings, a hearing shall be scheduled and advance notice of at least seventy-two hours shall be provided to the employee. If the employee does not waive the right to that hearing, then at the hearing the employee has a right to examine the

- Superintendent's evidence of continuing disability, to rebut that evidence, and to present testimony and evidence on the employee's own behalf.
- e. If the Superintendent determines, after weighing the testimony presented and evidence admitted at the pre-reinstatement hearing, that the employee is once again able to perform the essential job duties of the employee's assigned position, then the Superintendent shall reinstate the employee. If the Superintendent determines, after weighing the testimony presented and evidence admitted at the pre-reinstatement hearing, that the employee is not able to perform the essential job duties of the employee's assigned position, then the Superintendent shall not reinstate the employee.
 - f. If the Superintendent determines that an employee who has been disability separated has committed an act that is inconsistent with the employee's disabling illness or injury, then that act may be considered by the Superintendent when determining an employee's eligibility for reinstatement.
 - g. Once the Superintendent properly determines that the employee is to be reinstated, then the employee has a right to be assigned to a position in the classification the employee held at the time of the disability separation. If the classification the employee held at the time of disability separation no longer exists, no longer is utilized by the Board, or all occupants of the classification are of higher seniority than the employee to be reinstated, then the employee shall be placed in a similar classification. If no similar classification exists, the employee may be laid off.
 - h. If an employee has been granted disability benefits by a state retirement system, the requirements of this rule shall apply for up to five years, except that a licensed practitioner shall be appointed by the public employees retirement board and application for reinstatement shall not be filed after the date of service eligibility retirement.
 - i. An employee refused reinstatement as provided in paragraph (e) of this agreement shall be notified in writing of the refusal to reinstate. The employee may initiate the grievance procedure pursuant to Article 13 of this agreement to challenge the denial.
 - j. An employee who fails to apply for reinstatement during the period of time the employee has reinstatement rights as defined in F (1) shall be deemed permanently separated from service.

ARTICLE 21 – MILITARY SERVICE

- A. Any employee who is a member of a reserve force of the United States or the State of Ohio and who is ordered by the appropriate authorities to attend a training program or perform other duties under the supervision of the United States or the State of Ohio shall be granted a leave of

absence during the period of such activity. Employees will be paid in accordance with O.R.C. 5923.05 for any military service performed under that section.

- B. Any employee who enters into active service in the armed forces of the United States while in the service of the Employer shall be granted an unpaid leave of absence for the period of military service.

ARTICLE 22 – DONATED SICK LEAVE

A. Purpose

1. To assist those full-time regular non-probationary bargaining unit employees (hereinafter employee(s)) who are victims of a catastrophic, chronic debilitating illness/injury which places an undue strain and negative effect on the family.
2. Leave contributions shall be currently available sick leave credits.

B. Eligibility

1. Only full-time regular non-probationary bargaining unit employees are eligible to receive contributions.
2. The person with the catastrophic illness/injury must be the employee, their spouse, child, parent, or other person who stands in the place of parent (loco parentis) and in addition such other person who because of close relationship to such employee, shall be determined by the Superintendent or designee to be the equivalent to the above-mentioned members of the employee's immediate family.
3. Eligibility ceases if the employee is or becomes eligible for any other retirement or disability program.
4. The maximum contribution benefit shall be six (6) months (1,040 hours donated benefits) at the employee's regular rate of pay.
5. The catastrophic, chronic debilitating illness/injury must be sudden and prolonged and the consequences to the family must be debilitating.
6. The affected employee must have exhausted all other paid leave including sick leave, vacation leave and personal leave or compensatory time.

C. Application for Contributions

1. An employee or their representative may make application for a contribution. The application for donated leave must be endorsed by a representative from both the Union and the employer.
2. The application shall contain verification that the employee meets the eligibility criteria and must be accompanied by a physician's certification.

D. Physician's Certification

1. Appropriate physician's certification of a catastrophic, chronic debilitating illness/injury shall be submitted upon initial application and as requested by the Review Committee.
2. Application for contributed leave for care of a family member must specify the need for the presence of the employee.

E. Review Committee

1. Membership: The Review Committee shall be appointed on a case-by-case basis by the Superintendent or designee. The Committee shall be composed of the following people:
 - a. A member of the Executive Leadership Team that does not supervise the department of the individual seeking the donation;
 - b. A Board nurse;
 - c. The Superintendent; and
 - d. Human Resource Director.
2. Review Process: The Committee will review the following documents:
 - a. Application for contribution to determine if the eligibility criteria has been met;
 - b. The employee's attendance record as it relates to sick leave and unpaid leave. There must be a review of the reason(s) sick leave was used in the past; and
 - c. Physician's certification specifying the nature of the illness/injury, the prognosis, and the need for the presence of the employee.
3. Final Decision: A majority vote of the Review Committee shall constitute a final decision. In the case of a tie, a non-exempt employee from a department not impacted will vote. The Review Committee may approve authorization to use donated leave for periods up to one (1) month.
4. On-Going Review: If at any time, the circumstances of the employee appear to change during the course of the approved time or at the conclusion of the approved month, the Review Committee will reconvene. The authorization to use contributed time may be rescinded if the circumstances of the employee have changed. The Committee may ask for additional substantiation of need and for an additional certification of need by a physician.

F. Accrued Time

No sick leave, vacation leave, sick incentive, or personal leave shall accrue to the employee for any hours paid through contributed leave. Paychecks during the contributed leave will reflect that an accrual is occurring, however, at the conclusion of the leave, such hours which have been accrued will be deducted from the employee's payroll record.

G. Contributions

1. Full-time regular non-probationary bargaining unit employees and full-time, regular, non-probationary, non-supervisory, non-union employees may donate eight (8) or sixteen (16) hours of their accumulated vacation, personal, or sick leave to an employee approved to receive a contribution by the Review Committee, provided that after the contribution is made, they still have eighty (80) hours' accrued sick leave. The Board will distribute a form for bargaining unit employees and non-supervisory employees to designate for contribution eight (8), sixteen (16), or no hours of their sick leave when a need is identified and approved by the Review Committee. If there are not enough donated hours to cover the identified need, forms will be distributed for more donated time in increments of eight (8) or sixteen (16) hours. In order to donate multiple times within a one (1) year period, the employee must maintain a balance of at least two hundred forty (240) hours' accrued sick time.
2. The donated sick leave, if necessary to be used, will be considered used on a first-come basis by order in which the donors submit their forms to the designated office. If donated time is not necessary for use, it shall remain credited to the donating employees.
3. Employees who donate sick leave will not be penalized for sick leave use for purposes of annual evaluation or sick leave incentive bonus.

H. Leave Rules in Effect

1. All leave rules and procedures remain in effect for contributed leave.
2. Falsification of any document will result in severe discipline, including termination and refund of any wages paid.
3. An employee applying for leave contributions must request in writing and be granted unpaid leave of absence for medical reasons.

I. Disability Separation

Upon conclusion of six (6) months' unpaid leave of absence in which contributed leave has been paid due to the employee's illness/injury, the employee shall be placed on disability separation in accordance with disability separation policy and procedures.

J. Health Benefits

Health benefits shall continue during a period covered by contributed leave for six (6) months.

ARTICLE 23 – SENIORITY

- A. Seniority shall be an employee's uninterrupted length of service with the Board as a regular employee. A regular employee is an employee hired into a bargaining unit job on a regularly scheduled basis as a permanent employee, subject to the other terms of this Agreement.
- B. Starting dates of all new hires shall be reviewed promptly and seniority ties resolved by the date the Superintendent signs the approval to hire. In the event a tie still remains, the tie shall be broken by the last three (3) digits of the employees' social security numbers. The lower number shall be deemed first. In the event a tie still remains, the employees in question, along with a Union representative and a management representative, shall arrange a coin toss to break the tie.
- C. Once each year the Employer shall provide the Union with a copy of a current seniority list to each steward. The Union may meet with the Employer to review the list whenever necessary to correct and/or review the same. The seniority list shall be made up by classification and shall contain in order of seniority the names and dates of hire of each employee.
- D. Seniority shall be broken when an employee:
 - 1. Quits or resigns;
 - 2. Is properly terminated;
 - 3. Fails to report for work when recalled from layoff within fourteen (14) calendar days from the date on which the Employer sends the employee notice by registered mail (to the employee's last known address as shown in the Employer's records) unless satisfactory excuse is shown.

ARTICLE 24 – LAYOFF PROCEDURE

- A. In the event it becomes necessary to lay off employees due to the lack of work, abolishment of positions or lack of funds, employees shall be laid off in the inverse order of their seniority by classification. The Employer shall give the Union President and employee(s) written notice of their layoff at least fourteen (14) days before it takes effect. An employee who is laid off shall have the right to move into any other position that is of equally rated pay or lower rated pay, provided the employee is qualified for the position or can meet externally mandated requirements in the same manner as the Board would require of an outside hire. The employee, if exercising moving rights and allowed to move, shall replace only those employees with less seniority.
- B. In case of layoff, employees shall be laid off according to this Agreement, which supersedes the Ohio Revised Code. Employees are laid off in the following order:
 - 1. Employees who have not completed their probationary period after appointment;
 - 2. Employees who have satisfactorily completed their probationary period after appointment by seniority.

- C. Names of employees laid off shall be placed on a recall list based upon total seniority with a copy of said list to be provided to the Union. No employee shall be hired, promoted, or transferred in a position that is of equally rated pay or lower rated pay while any employee is on layoff unless all employees laid off refuse the position to be filled or are not qualified to fill the position or cannot meet the externally mandated requirements in the same manner as the Board would require of an outside hire. Any employee who accepts a position of lesser pay either through layoff or reassignment will retain a right to recall to his/her previous classification up to one (1) year after the layoff takes effect.
- D. An employee who has been designated for layoff may accept layoff rather than exercise his/her displacement rights. The exercise of such option shall not cause the employer to prejudice the employee's rights to unemployment benefits or recall.
- E. When the Employer determines to fill a bargaining unit vacancy on a regular basis that is in an equally rated pay, an employee shall be offered recall in order of seniority to such a vacancy if the employee is qualified according to seniority within a one (1) year period. Recall notices shall be by personal contact, either being a phone call or personally delivered. If no contact is made, the notice will be sent by certified mail to the employee's home address of record and verification of any form of notice shall be sent to the Union. The Union and/or employee must personally present their response in writing and/or by certified mail within seven (7) calendar days of the date mailed, but the employee will have ten (10) work days to report to work. Laid off and bumped employees shall be offered recall to vacancies before bidding occurs.

ARTICLE 25 – TRANSFERS, JOB POSTING AND BIDDING PROCEDURES

- A. When a job becomes vacant or if a new job is created, a job notice shall be posted by the Employer at each work location and on the agency web site. Additionally, an "all e-mail" shall be sent to employees notifying them there is a new job posting. This notice shall be posted for a minimum of three (3) work days. The Superintendent or designee may determine when a vacancy exists and when to fill it.
- B. The job notice shall specify the title of the position, job qualifications, the hours to be worked, whether it is a nine month position or a twelve month position, the rate of pay, the job location, and other pertinent information and shall state the final date for receipt of applications.
- C. Employees will be allowed no less than three (3) work days to place bids to fill vacancies. A form shall be available for employees who want to be contacted about open positions during any absence from work, either due to vacation, shutdown, summer break, or other absence. Employees who want to be contacted shall be responsible for completing the form and submitting it to the Human Resource Department.
- D. When an employee is bidding on a job posting, management shall use the following tools to make the decision on awarding the job:

Job experience
Qualifications
Past Job Performance

Seniority
General Knowledge Testing (which may or may not be required)

No one tool will be a disqualifying factor, so long as the employee meets the minimum qualifications. When two or more employees are equally well qualified for the position, the more senior person shall be awarded the job. An employee who accepts a lateral transfer shall maintain all seniority earned by an employee from within the bargaining unit and the vacancy shall be filled when qualified personnel have been interviewed and chosen.

ARTICLE 26 – CONFORMANCE TO CLASSIFICATION OF DUTIES

A. General Provisions

An employee shall work within his/her classification and shall not be required to perform duties outside his/her classification, except the Employer may assign the employee to perform work outside his/her classification under the following conditions:

1. If there is no one available within the classification to perform the work;
2. If a vacancy exists and the Employer has not had an opportunity to fill the position. Such vacancies shall be filled within thirty (30) days;
3. If there is no work available within the employee's classification;
4. If the employee is a Transition (New Business Model) Carryover Employee.
5. Transition Carryover Employees agree to perform duties, and any additional/different duties as assigned.

B. Working Below Classification

Any employee temporarily requested to work below his/her classification or pay rate shall receive his/her regular rate of pay.

C. Working Out of Classification

If it is necessary, under the conditions listed in this Article, to work an employee below his/her classification, the least senior qualified employee shall be utilized. If it is necessary to work an employee above his/her classification, the most senior qualified employee shall be offered first opportunity. The employee that works above his/her classification shall receive, in addition to his/her regular pay, a one (1) step increase for all hours he/she worked in the higher classification or a four percent (4%) increase for same. The Employer shall select a classification and then canvas by qualifications and seniority.

ARTICLE 27 – WORK RULES

- A. The Employer and the Union agree that work rules shall be applied equally where work rules are appropriate.

- B. Except in unusual circumstances, any additional work rules or procedures deemed necessary by the Employer to the efficient operation of the Board shall either be communicated orally to employees or be posted prominently on all bulletin boards for a period of three (3) work days before they become effective and shall be given in writing to all affected employees.
- C. The Employer agrees to discuss changes in existing work rules or establishment of new work rules with the Union.
- D. All Board Policies shall be made available to employees on the P: Drive (Public Drive) in the Board Policy Manual. When changes are made to Board Policy, all employees will be notified via the monthly HR Newsletter.

ARTICLE 28 – NO SUBCONTRACTING

The Employer will not subcontract work for the express purpose of laying off bargaining unit employees.

ARTICLE 29 – EMPLOYEE LIFE INSURANCE

The Board shall provide and pay group life term and accidental dismemberment benefits for each full-time employee in the bargaining unit in the amount of Twenty Thousand Dollars (\$20,000).

ARTICLE 30 – HEALTH AND WELFARE PLAN

To be eligible for Health Care coverage, an employee must work at least an average of 30 hours per week during the annual measurement period as established by the Board.

A. Health Insurance

1. The Board shall pay the premium cost for the following plans: (1) single employee, (2) employee plus family for hospitalization, surgical and major medical insurance through a carrier licensed by the State of Ohio which provides health insurance coverage. The employee contribution will be 15% for single employee coverage and 20% for employee plus family coverage.
 - a. Employees will be given reasonable notice (at least by posting) of the open enrollment period.
2. The health insurance benefit and the eligibility to receive these benefits are subject to the administrative procedures, rules and regulations of the insurance carrier's master policy and the individual certificates issued to employees.
3. The Board may provide such health benefits through a preferred provider organization or other alternative to traditional insurance. Any such alternative coverage shall preserve

the employee's choice of doctor and hospital, but the employee may incur greater costs for out-of-network providers.

4. Employees who achieve the annual goals outlined the Board's Wellness Program will receive a one-time lump sum payment of \$600 on or before January 31 of the following year.

B. AFSCME Health and Welfare Fund

The Board agrees to pay Eighty-One Dollars and Seventy-Five Cents (\$81.75) per month for the AFSCME Health and Welfare Fund for each employee in the bargaining unit (Dental Level IV, Hearing Aid, Vision III, and Legal Care).

ARTICLE 31 – HAND TOOL ALLOWANCE

Any employee who is required by the Employer to use his/her own tools to perform the duties required by his/her Employer shall have those tools replaced if damaged or broken during his/her employment by the Employer.

ARTICLE 32 – EDUCATIONAL TRAINING

- A. To be eligible to participate in the tuition reimbursement program, the employee must have been a full-time employee for at least one year prior to applying for approval of coursework. The employee also must be a full-time employee both when the course is taken and when the reimbursement is requested after the course is taken. Further, except for employees who require course work to earn a certification required by the Employer, the Employee shall not have received any ratings below "Met Expectations" or its equivalent in the performance review immediately preceding the year in which reimbursement is sought.
- B. The Employee must obtain written approval for reimbursement from the Superintendent or designee before enrolling in the course for which reimbursement is sought.
- C. All courses must be taken from an accredited institution of higher education in Ohio, unless otherwise approved in writing by the Superintendent or designee.
- D. The Employee, after completion of the course for which reimbursement is sought, must remain a full-time employee of the Board for one full year. If the Employee does not remain a full-time employee of the Board for a full year after completion of the course, the Employee must refund the tuition reimbursement directly to the Board. An Employee who is laid off will not be required to reimburse the Board.
- E. Reimbursement shall be limited to twelve semester hours or eighteen quarter hours per term. The maximum tuition reimbursement per calendar year for an employee shall be \$1,000.
- F. An Employee may not receive reimbursement for courses taken on a pass-fail basis, unless that is the only option available for the course.

G. The Employee shall be reimbursed by the method described below that results in a higher reimbursement:

- a. \$50.00 per quarter hour or \$60.00 per semester hour.
- b. Seventy-five percent (75%) of the tuition costs if the Employee receives a letter grade of A, sixty-five percent (65%) of the tuition costs if the Employee receives a letter grade of B, or fifty percent (50%) of the tuition costs if the Employee receives a letter grade of C. If the class is only available on a pass/fail basis, the Employee will be reimbursed at sixty-five percent (65%) of the tuition costs. Reimbursement shall not exceed the actual cost of tuition.

H. After the Employee successfully completes an approved course under the conditions described in this Article, the Employee shall apply for reimbursement by submitting a request in writing to the Superintendent, accompanied by an official grade card verifying the completion and grade in the course, or any other documentation acceptable to the Superintendent to verify completion and payment for the course by the Employee.

ARTICLE 33 – DAMAGE TO PERSONAL PROPERTY

If in the course of performing job duties in accordance with established policy and procedure an employee's glasses, watch, watch band, or clothing is damaged by a client or student, the Board will reimburse the employee for replacement of glasses, for replacement of a watch/band up to Ten Dollars (\$10), and for replacement of an article of clothing up to Twenty Dollars (\$20) per article. The incident and damage must be reported on a form prescribed by the Superintendent or designee and filed with the Superintendent or designee within one (1) business day of the occurrence.

ARTICLE 34 – SUCCESSOR CLAUSE

- A. The provisions of this Agreement shall be binding upon the Employer and its successors, assigns, or future purchasers; and all of the terms and obligations herein contained shall not be affected or changed in any respect by consolidation, merger, sale, transfer, or assignment by any Employer or any or all of its property, or affected or changed in any respect by any change in legal status, ownership or management. This Agreement shall cover all future locations which the Employer may operate during the term of this Agreement or any extension thereof, or any transfer of operations from the existing location, or any subcontract of work covered or performed by employees in the existing location.
- B. This provision shall be of no force and effect if invalidated by law or legislative action. This provision shall not apply to any transfer of operations, discontinuance of operations, sale of assets, or similar action by the Board which is mandated by law, nor will it apply to the discontinuance of part or all of the Board's operations and the initiation or continuance of such operations or programs by another governmental entity, such as a municipality, school district, or health department.

ARTICLE 35 – WAGES

- A. Effective July 1, 2022, each bargaining unit member's hourly rate shall be increased by 3%.
Effective July 1, 2023, each bargaining unit member's hourly rate shall be increased by 3%.
Effective July 1, 2024, each bargaining unit member's hourly rate shall be increased by 3%.
- B. A list of bargaining members' hourly wages for each year of this Agreement appears in Appendix A.
- C. Method of Payment
 - 1. All twelve (12) month employees shall be paid twenty-six (26) pays over the twelve (12) month period. If in a year there are twenty-seven pay periods based on an every-other-week pay schedule, twelve-month employees will be paid for actual hours for each pay period.
 - 2. All nine (9) month employees shall be paid out over a twelve (12) month period in twenty-six (26) pays, unless the employee gives the Superintendent or designee written notice by July 1 of his or her election to retain a nine-month pay cycle. If in a year there are twenty-seven pay periods based on an every-other-week pay schedule, nine month pro-rated employees will be paid in 27 equal pays for the year. New hires after July 1 shall be paid out over a twelve month period in twenty six (26) pays unless the employee gives the Superintendent or designee written notice by the end of the first work day of his or her election to have a nine-month pay cycle. Employees who are not paid over the summer months shall have the employee portion of insurance premiums for the entire year deducted over the nine (9) month period. Also, such nine (9) month employees shall not be eligible to receive unemployment compensation during the summer. The employee portion of insurance premiums shall be deducted over the entire twelve (12) month period if the employee is paid over the entire twelve (12) month period.
- D. Signing bonuses of \$200 shall be payable in the first full pay period following ratification of this Agreement by the Union and approval of this Agreement by the Board.

ARTICLE 36 – SUBSTANCE ABUSE TESTING

- A. The Superintendent or designee may require an employee to be tested for alcohol or illegal substance use that may impair his or her job performance when: (1) there has been an accident or near miss involving personal injury to anyone or property damage; or (2) the administration has reasonable cause to believe the employee has used alcohol or an illegal substance affecting his/her performance.
- B. Any testing procedures will be consistent with appropriate industry practice.

ARTICLE 37 – SAVINGS CLAUSE

If any Section of this Agreement is invalidated by law, then only said Section is invalidated until the parties meet to discuss said Section to conform to law. Consistent with O.R.C. Chapter 4117,

a provision of this Agreement supersedes any conflicting provision of state law concerning the wages, hours, or terms and other conditions of employment of employees in the bargaining unit, with the exceptions specified in O.R.C. §4117.10. If this Agreement contains no provision on a subject, then pertinent provisions of state law shall apply.

ARTICLE 38 – PROFESSIONAL RESPONSIBILITY

When an employee believes that a client's health or welfare is in jeopardy, for any reason, the employee is to discuss the situation with the immediate supervisor. If a resolution to the situation cannot be reached promptly, the employee and the immediate supervisor shall contact the Building Administrator, the Department Head, or in his/her absence, the Superintendent or his/her designee.

ARTICLE 39 – DURATION OF AGREEMENT

- A. This Agreement shall be effective February 1, 2022 and shall remain in full force and effect through January 31, 2025.
- B. If either party desires to modify or amend this Agreement, it shall give written notice of such intent no earlier than one hundred twenty (120) days prior to the expiration date, nor later than ninety (90) calendar days prior to the expiration date of this Agreement. Such notice shall be by certified mail with return receipt. The parties shall commence negotiations within two (2) calendar weeks upon receiving notice of intent.
- C. In the event either party desires to terminate this Agreement, written notice must be given to the other party not less than ten (10) days prior to the desired termination date which shall not be before the last effective date of this Agreement as set forth in paragraph (A) above.
- D. The parties acknowledge that during the negotiations which result in this Agreement, each had the unlimited right to make demands and proposals on any subject matter not removed by law from the area of collective bargaining, and that the understandings and agreement arrived at by the parties after the exercise of that right and opportunity are set forth in this Agreement. Therefore, the Employer and the Union for the life of this Agreement, each voluntarily and unequivocally waives the right, and each agrees that the other shall not be obligated, to bargain collectively or individually with respect to any subject or matter referred to or covered in this Agreement, or with respect to any subject or matter not specifically referred to or covered in this Agreement, even though such subject matters may not have been within the knowledge of either or both parties at the time they negotiated or signed this Agreement.
- E. This Agreement constitutes the entire agreement between the Board and the Union and between the Board and any employee within the collective bargaining unit. This Agreement replaces all previous oral and written agreements between the parties. The parties hereby agree that the relations between them shall be governed only by the terms of this Agreement.
- F. The Board shall provide a copy of this Agreement to each employee and to each new hire in the unit.

FOR THE ALLEN COUNTY
BOARD OF DD

FOR LOCAL 1770/CHAPTER C,
COUNCIL 8, AFSCME

Michael D. St. John

Ken G. Vroman

Chris Culveridge

APPENDIX A

AFSCME NEGOTIATED AGREEMENT FEBRUARY 1, 2022 - JANUARY 31, 2025

EMPLOYEES' HOURLY WAGES

			07/01/22	07/01/23	07/01/24
		Hourly Rate (as of 7/1/21)	Hourly Rate	Hourly Rate	Hourly Rate
1	Larry Boop	20.36	20.97	21.60	22.25
2	Jim Muter	19.60	20.19	20.79	21.42
3	Brandon Morman	14.39	14.82	15.27	15.72

*Hourly rates listed above are the base rate and do not include pay differentials as outlined in Articles 6 (Hours of Work) and 26 (Conformation to Classification of Duties).

